

Satveer Singh v. State of U.P. & Ors.

High Court of Judicature at Allahabad · Division Bench · 25 January 2019 · WRIT - C No. - 2906 of 2019 · **Writ disposed; petitioner directed to Clause 6.5 before the Executive Engineer; recovery stayed pending that decision; merits not decided.**

HEADNOTE

A Division Bench treated a challenge to electricity recovery citations—where the petitioner said he had applied for a connection in 1991 and deposited Rs. 2,500 but was never connected, yet billed—as a disputed bill. The statutory remedy is an objection before the Executive Engineer under Clause 6.5 of the Electricity Supply Code, 2005. The writ was disposed of with a time-bound hearing direction; recovery under the impugned citations was kept in abeyance subject to appearance; the Court did not decide the claim on merits.

FACTUAL SUMMARY

Satveer Singh sought quashing of a recovery citation dated 20 December 2018 for Rs. 3,75,025 towards electricity dues and of notice no. 1790 seeking a further Rs. 3,70,025. He said he had applied for an electricity connection in 1991 and deposited Rs. 2,500, but no connection was ever given, yet a bill was raised. Respondents included the State of Uttar Pradesh and the Executive Engineer, Vidhyut Vitran Khand-I, Paschimanchal Vidhyut Vitran Nigam, Moradabad.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

disputed-bill-executive-engineer

HOLDING

A writ challenging electricity recovery citations that raise a disputed bill is not to be kept pending; the consumer's remedy is to place the objection before the Executive Engineer under Clause 6.5 of the Electricity Supply Code, 2005, who is to hear and decide it in accordance with law. Recovery may be kept in abeyance pending that decision, without the Court adjudicating the claim on merits. ¶ 1

PRINCIPLE TAGS

billing-objection-to-executive-engineer-under-6.5 A Division Bench treated a challenge to electricity recovery citations—where the petitioner said he had applied for a connection in 1991 and deposited Rs. 2,500 but was never connected, yet billed—as a disputed bill.. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — MERITS OF THE ELECTRICITY BILL AND OF RECOVERY CITATIONS NOS. 1789 DATED 20.12.2018 AND 1790, INCLUDING WHETHER A CONNECTION WAS EVER GRANTED

The Court expressly recorded that it had not adjudicated the petitioner's claim on merit. ¶ 1